

Complaint Report (CCRB)

CCRB Case No : 201509988 C/V Report Date : Mon, 11/23/2015
 Complaint Type : CCRB Investigator : Patrick Yu
 Complaint Made At : CCRB Ref. No
 Received Date (CCRB) : Mon, 11/23/2015 Mode : Call Processing System
 Incident Date(s) : Sat, 11/21/2015 11:42 PM, Sun, 11/22/2015 , Mon, 11/23/2015 , Tue, 11/22/2016 , Wed, 11/23/2016
 Place of Occurrence: [REDACTED] Precinct: 40
 Location : Street/highway Boro: Bronx
 Reason for Initial Contact : PD suspected C/V of violation/crime - street
 Charges: Arrest - other violation/crime

Complainant/Victim Details

Name: [REDACTED] Type: Comp/Victim
 Address: [REDACTED]
 Contacts: [REDACTED]
 Gender: [REDACTED] Ethnicity: [REDACTED]
 Person Assisting: [REDACTED] Date of Birth: [REDACTED]
 Injury Details: Type of Injury Description
 Other Injury § 87(2)(b) sustained burning in the eyes.

Name: [REDACTED] Type: Victim
 Address: [REDACTED]
 Contacts: [REDACTED]
 Gender: [REDACTED] Ethnicity: [REDACTED]
 Person Assisting: [REDACTED] Date of Birth: [REDACTED]

Officer(s) Named in Complaint

Rank	Officer	S/W Officer	Tax No	Race	Cmd	Allegations/Board Dispositions
POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Pepper spray - (F) Substantiated (Command Discipline B)
POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Refusal to process civilian complaint - (A) Alleged Victim Uncooperative
POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Refusal to provide name/shield number - (A) Alleged Victim Uncooperative

POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Retaliatory arrest - (A) Substantiated (Command Discipline B)
POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Word - (D) Unsubstantiated
POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Word - (D) Alleged Victim Unavailable
POM	John Zorrilla	Subject Officer	[REDACTED]	Hispanic	807	Race - (Black) - (E) Unsubstantiated
SGT	Jonathan Benintendo	Subject Officer	[REDACTED]	White	042	Refusal to process civilian complaint - (A) Unsubstantiated
SGT	Ervy Diaz	Subject Officer	[REDACTED]	Hispanic	803	Refusal to process civilian complaint - (A) Substantiated (Command Discipline B)
SGT	Ervy Diaz	Subject Officer	[REDACTED]	Hispanic	803	Word - (D) Alleged Victim Uncooperative
LT	Neil Zuber	Subject Officer	[REDACTED]	White	807	Retaliatory arrest - (A) Substantiated (Command Discipline A)
POM	Giovanni Laguna	Witness Officer	[REDACTED]	Hispanic	807	
POM	Jason Zupka	Witness Officer	[REDACTED]	White	807	
SGT	Pawel Lachowski	Witness Officer	[REDACTED]	White	040	
POM	Elvis Duran	Witness Officer	[REDACTED]	Hispanic	807	
POM	Manolin Molina	Witness Officer	[REDACTED]	Hispanic	807	
SGT	Sincerae Tinsley	Witness Officer	[REDACTED]	Black	042	
SGT	Miguel Frias	Witness Officer	[REDACTED]	Hispanic	807	

Initial Complaint Narrative

DiRAD. On Saturday November 22, 2015, between 11:40 p.m. or 11:42 p.m., at East 158th Street and Brook Avenue in the Bronx, [REDACTED] reported that Police Officer John Zorrilla, whose tax number is [REDACTED] assigned to PSA 7, was rude, and is a "racist" who used excessive force. Police Officer Zorrilla put a Taser in [REDACTED]'s face and "pepper sprayed" him. Police Officer Zorrilla used excessive force, ran away from the scene, and provided no medical attention. Police Officer Zorrilla was in an unmarked white Nissan Altima, and is described as a 6'1" tall Hispanic male. [REDACTED] sustained a black eye and cuts on his eyes. No summons was issued or arrest made. The officers were in plainclothes. Follow up call was made to [REDACTED]. On Saturday, November 21, 2015, at approximately 11:42 p.m., at East 158th Street between Brook Avenue and Third Avenue in the Bronx, [REDACTED] and his cousin, [REDACTED] left from his friend's building, a residential building possibly NYCHA, to meet [REDACTED]'s friend [REDACTED] (surname not known). They approached a black taxicab to pay for [REDACTED] fare. Subsequently, a four door white Nissan Altima with license plate number [REDACTED] § 87(2)(e), § 87(2)(f) "drove up to them and told them to move, but [REDACTED] replied that they were paying for the fare. Police Officer Zorrilla and his unidentified partner (PO2) exited this vehicle and again told them to move. [REDACTED] then responded that they should tell the taxicab driver to move. Police Officer Zorrilla told [REDACTED] that he was the one with a "fucking" big mouth. Police Officer Zorrilla then pepper sprayed him in the eyes. [REDACTED] subsequently hit the officers' car because he was in pain and could not see. [REDACTED] tried talking to the police and was then handcuffed. Back up arrived, but Police Officer Zorrilla and PO 2 drove away from the location. [REDACTED] went to [REDACTED] § 87(2)(b) and was treated. The next day, on November 22, 2015, [REDACTED] went to PSA 7 and was subsequently arrested. He was sent to Bronx Central Booking, but never saw a judge. He also has no pending court date. [REDACTED] § 87(2)(b) also went to a precinct (command number not known) located at East 138th Street in the Bronx, and spoke to an unidentified sergeant who told him subject officer's name: Police Officer John Zorrilla. Description: Police Officer John Zorrilla: "Dominican"/Hispanic man, who spoke with a Spanish accent, who is 6'1" tall, between 35 to 37 years old, weighed 200 pounds, had an athletic build (exact weight not known). Also wore a hat and silver hooded sweatshirt and faded blue jeans.

Witness

Name of Witness: [REDACTED]

Address:			
Contacts:			
Gender :		Ethnicity:	
Date of Birth :			
Name of Witness:			
Address:			
Contacts:			
Gender :		Ethnicity:	
Date of Birth :			